

		defects in those responses, while Plaintiff's counsel asserts that the responses overall reflect substantial compliance. But the only copies of the belated responses which have been presented to the Court, as attached to the Leaf Decl. at Exs. 1-6, show only <i>unverified</i> responses, which do not demonstrate substantial compliance. The Motion is therefore DENIED. <i>Counsel for Defendant Regents of the University of California is to give notice of this ruling.</i>
9.	Tran v. Coshov 25-1530606	(Moot)
10.	Soteropoulos v. FCA US LLC 24-1492568	(Withdrawn)
11.	Druckrey v. Mercury Insurance Company 25-1494934	Before the Court is a demurrer and motion to strike filed by defendant California Automobile Insurance Company, erroneously sued as Mercury Insurance Company (Defendant) directed to the second amended complaint (SAC) of plaintiffs Craig Druckrey and Christine Druckrey (collectively, Plaintiffs). The demurrer is OVERRULED. The motion to strike is GRANTED WITH 20 DAYS LEAVE TO AMEND. Motion 1: Demurrer A breach of the implied covenant of good faith and fair dealing involves something beyond breach of the contractual duty itself. (<i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371, 1394.) "[A]llegations which assert such a claim must show that the conduct of the defendant, whether or not it also constitutes a breach of a consensual contract term, demonstrates a failure or refusal to discharge contractual responsibilities, prompted not by an honest mistake, bad judgment or negligence but rather by a conscious and deliberate act, which unfairly frustrates the agreed common purposes and disappoints the reasonable expectations of the other party thereby depriving that party of the benefits of the agreement." (<i>Id.</i> at 1395.) Plaintiffs have adequately pleaded a claim for breach of the covenant of good faith and fair dealing. The SAC alleges Defendant confirmed coverage for the loss, but initial payments were "limited and facially insufficient" to repair the extensive damage to the Subject Property. (SAC ¶ 16.) The SAC alleges Defendant's own consultant informed Plaintiffs they could not complete repairs for the amount paid by Defendant and only after Plaintiffs retained a public adjusting company to assist them did Defendant concede the initial estimates were inaccurate. (See SAC ¶¶ 18-19.) While Plaintiffs allege Defendant issued supplemental payments, they also allege "after the supplemental payment on November 15, 2023, Defendant's pattern of undervaluing the loss and delays in payment continued." (SAC ¶ 20.) The SAC shows the delays and underpayments continued for two years, and that Defendant failed to issue a promised supplemental payment of \$77,098.46. (See SAC ¶¶ 21-30.)

		The Court finds the SAC's allegations sufficient at the pleading stage. "[W]hen benefits are due an insured, delayed payment based on inadequate or tardy investigations, oppressive conduct by claims adjusters seeking to reduce the amounts legitimately payable and numerous other tactics may breach the implied covenant because it frustrates the insured's primary right to receive the benefits of his contract—i.e., prompt compensation for losses." (<i>Love v. Fire Ins. Exch.</i> (1990) 221 Cal.App.3d 1136, 1153 (emphasis in original). The demurrer to the second cause of action is OVERRULED. Motion 2: Motion to Strike Pursuant to <i>Code of Civil Procedure</i> section 436, the court may "strike out any irrelevant, false or improper matter inserted in any pleading" and "strike out all or any part of any pleading not drawn or filed in conformity with the laws of the state, a court rule, or an order of the court." The allegations appear insufficient to the Court to support entitlement to punitive damages. The allegations that Defendant undervalued the loss and wrongfully withheld benefits without proper investigation are insufficient to demonstrate that Defendant intended to cause injury to Plaintiffs or that Defendant engaged in despicable conduct. (See <i>Civ. Code</i>, § 3294(a), (c); <i>Pac. Gas & Elec. Co. v. Superior Court</i> (2018) 24 Cal.App.5th 1150, 1159.) The SAC also fails to plead facts showing that an officer, director, or managing agent of Defendant knew or ratified the alleged wrongful conduct. (<i>Civ. Code</i>, § 3294(b).) Based on the foregoing, the motion to strike is GRANTED WITH 20 DAYS LEAVE TO AMEND. <i>Counsel for Defendant shall give notice.</i>
12.	Casco v. Bank of America, N.A. 23-1335287	Before the Court is a Motion for Judgment on the Pleadings by Bank America N.A. (BANA) as to the entire complaint filed by plaintiff Franklin Casco, Jr. For the reasons set forth herein, the motion is DENIED. <u>Request for Judicial Notice</u> BANA requests the Court take judicial notice of four recorded documents. (ROA 74) The Court will take judicial notice of the facts and propositions within the four recorded documents. (<i>Evid. Code</i> §452(h).) <u>Motion for Judgment on the Pleadings</u> A motion for judgment on the pleadings may be made, and granted, on the same grounds as a general demurrer. (<i>Stoops v. Abbassi</i> (2002) 100 Cal.App.4th 644, 650; <i>Code Civ. Proc.</i>, §438(c)(1)(B)(ii).) As with a demurrer, the grounds for judgment on the pleadings must appear on the face of the complaint or be based on facts that the court may judicially notice. (<i>Code Civ. Proc.</i>, §438(d); see, <i>Burnett v. Chimney Sweep</i> (2004) 123 Cal.App.4th 1057, 1063 [subject to certain